

MASTER SERVICES AND SUPPLY AGREEMENT

This Master Services and Supply Agreement is made effective November 15, 2023, between Acme Industrial Partners, Inc. ("Vendor") and Keystone Procurement LLC ("Client").

1. Pricing Structure

Pricing shall follow the tiered volume-based schedule attached hereto as Exhibit A, under which unit prices decrease as cumulative purchase volume increases across the defined tiers.

2. Prompt Payment Discount

Provided that Client remits payment within ten (10) days of invoice, Client shall be entitled to a prompt-payment discount of five percent (5%) of the invoiced amount.

3. Invoicing and Payment

Unless the prompt-payment discount is taken, Client shall remit payment in full no later than forty-five (45) days following the date of each invoice.

4. Volume Commitment

Client commits to purchase a minimum committed volume equal to \$250,000 per contract year.

5. Term of Agreement

This Agreement shall remain in effect for an initial period of thirty-six (36) months.

6. Renewal of Term

Upon expiry of the initial period the Agreement shall renew automatically for additional one-year periods, unless a party delivers written notice of its intent not to renew not fewer than ninety (90) days before the renewal date.

7. Termination

This Agreement may be terminated by either party only in the event of a material breach that remains uncured for thirty (30) days after written notice. For the avoidance of doubt, neither party shall have the right to terminate this Agreement for convenience.

8. Limitation of Liability

In no event shall Vendor's aggregate liability exceed Five Hundred Thousand Dollars (\$500,000).

9. Indemnification

Vendor shall indemnify, defend, and hold harmless Client against any and all third-party claims arising from the goods or services provided hereunder. Client shall have no reciprocal indemnification obligation.

10. Governing Law

This Agreement and any dispute arising hereunder shall be governed by and construed in accordance with the laws of the State of New York.